

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 1035

By: Woods of the Senate

and

Hardin of the House

8
9
10 COMMITTEE SUBSTITUTE

11 An Act relating to The Plumbing License Law of 1955;
12 amending 59 O.S. 2021, Sections 1003 and 1017, which
13 relate to definitions and inapplicability; defining
14 term; adding exceptions to applicability of certain
15 provisions; updating statutory language; updating
16 statutory reference; and providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 59 O.S. 2021, Section 1003, is
18 amended to read as follows:

19 Section 1003. As used in The Plumbing License Law of 1955:

20 1. "Board" means the Construction Industries Board;

21 2. "Committee" means the Oklahoma State Committee of Plumbing
22 Examiners appointed by the Construction Industries Board;

23 3. "Plumbing Hearing Board" means the ~~State~~ Plumbing Hearing
24 Board which shall consist of a designee of the Construction

1 Industries Board, as chair, and the members of the Oklahoma State
2 Committee of Plumbing Examiners;

3 4. "Apprentice" or "plumber's apprentice" means any person
4 sixteen (16) years of age or older who, as the principal occupation
5 of the person, is engaged in learning and assisting in the
6 installation of plumbing under the direct supervision of a licensed
7 journeyman plumber or plumbing contractor;

8 5. "Journeyman plumber" means any person other than a ~~master~~
9 ~~plumber or~~ plumbing contractor who engages in or works at the actual
10 installation, alteration, repair ~~and/or,~~ or renovation of plumbing;

11 6. "Temporary journeyman plumber" means any person other than a
12 person permanently licensed as a journeyman plumber, ~~master plumber,~~
13 or plumbing contractor in this state who meets the temporary
14 licensure requirements of Section 1006.1 of this title;

15 7. ~~"Master plumber" is a term used and defined under laws which~~
16 ~~have been repealed. A person formerly known as a master plumber is~~
17 ~~henceforth to be known as a "plumbing contractor" as defined in this~~
18 ~~section;~~

19 ~~8.~~ "Plumbing contractor" means any person who is skilled in the
20 planning, superintending, and practical installation of plumbing and
21 who is familiar with the laws and rules governing the same. This
22 definition may be construed to mean any person who has qualified and
23 is licensed under The Plumbing License Law of 1955 as a plumbing
24 contractor, who may operate as an individual, ~~a~~ firm, partnership,

1 limited liability company, or corporation, or other legal entity to
2 engage in the business of plumbing, or the business of contracting
3 to do plumbing, or furnish labor or materials or both for the
4 installation, repair, maintenance, or renovation of plumbing
5 according to the requirements of The Plumbing License Law of 1955.
6 Any former master plumber shall be known as a plumbing contractor;

7 ~~9.~~ 8. "Plumbing" means, and includes:

- 8 a. all piping, fixtures, appurtenances, and appliances
9 for, and in connection with, a supply of water within
10 or adjacent to any building, structure, or conveyance,
11 on the premises and to the connection with a water
12 main or other source of supply,
- 13 b. all piping, fixtures, appurtenances, and appliances
14 for sanitary drainage or storm drainage facilities,
15 including venting systems for such facilities, within
16 or adjacent to any building, structure, or conveyance,
17 on the premises and to the connection with a public
18 disposal system or other acceptable terminal,
- 19 c. the installation, repair, maintenance, and renovation
20 of all piping, fixtures, appurtenances, and appliances
21 for a supply of water, or for the disposal of ~~waste~~
22 ~~water~~ wastewater, liquid waste, or sewage within or
23 adjacent to any building, structure, or conveyance, on
24

1 the premises and to the source of supply of water or
2 point of disposal of wastes, and

3 d. the installation, repair, and maintenance of radiant-
4 floor heating system piping in residential homes with
5 capacities no greater than one hundred thousand
6 (100,000) ~~BTUs~~ BTUs using only piping approved by the
7 most current adopted edition of the International
8 Mechanical Code; and

9 9. "Utility contractor" means a corporation, partnership, or
10 sole proprietorship in good legal standing that specializes in the
11 construction, installation, maintenance, and repair of underground
12 infrastructure systems including water, sanitary sewer, storm or
13 drainage sewer, or gas, on behalf of a utility owner or the property
14 owner; and

15 10. "Variance and Appeals Board" means the Oklahoma State
16 Plumbing Installation Code Variance and Appeals Board.

17 SECTION 2. AMENDATORY 59 O.S. 2021, Section 1017, is
18 amended to read as follows:

19 Section 1017. The provisions of The Plumbing License Law of
20 1955 shall not apply to:

21 1. Minor repairs, consisting of repairing or replacing faucets
22 or minor working parts of plumbing fixtures;

23 2. Farm buildings located outside any city or town unless such
24 buildings are connected to a public water or sewer system;

1 3. Maintenance work for state institutions and school
2 districts;

3 4. The installation, maintenance, repair, renovation of
4 automatic sprinkler systems and related mechanical appurtenances
5 beginning at a point where the pipe or piping system provides water
6 used exclusively for these automatic sprinklers and their related
7 appurtenances and to standpipes connected to automatic sprinkler
8 systems;

9 5. The construction, installation, maintenance, repair,
10 renovation, ~~and/or~~ or removal of pipe or piping systems and related
11 mechanical appurtenances including backflow preventers, appliances
12 ~~and/or~~ or equipment used in connection therewith, directly or
13 indirectly within or without any building or structure, from a point
14 or location in a source of potable water supply at which point or
15 location there exists any backflow preventer, provided that ~~said~~ the
16 pipe ~~and/or~~ or piping systems are for:

- 17 a. heating, except radiant-floor heating systems as
18 ~~defined~~ provided for in subparagraph d of paragraph 9
19 8 of Section 1003 of this title,
20 b. cooling,
21 c. air conditioning,
22 d. refrigeration, or
23 e. boilers and other pressure vessels of ~~whatsoever~~ any
24 kind and character.

1 A "backflow preventer", as used ~~herein~~ in this paragraph, means
2 any permanent mechanical device, or combination of permanent
3 mechanical devices, of ~~whatever~~ any material, which, after
4 installation, acts to prevent a reversal of the normal directional
5 flow of potable water within the piping system in which it is
6 installed, ~~and~~. Such term shall include, but not be limited to,
7 metal ~~checkvalves~~ check valves and ~~airgaps~~ air gaps, either
8 naturally or artificially created. Provided, ~~further~~, that the
9 exclusionary provisions of this paragraph shall apply only to and
10 within governmental agencies, counties, cities, and towns which now
11 have or which hereafter may adopt separate laws relating to the
12 licensing, registration, and regulating of persons engaged, for
13 business purposes, in any of the areas of trade ~~hereinbefore~~
14 specified in this paragraph; ~~the~~. The exemptions herein being
15 ~~provided to~~ set forth in this paragraph shall apply only to ~~these~~
16 items specifically regulated by any such local laws and ordinances;
17 and

18 6. An individual who performs plumbing work on such
19 individual's property of residence; or

20 7. Utility contractors who have a Class D Operator
21 certification, or higher certification issued from the Department of
22 Environmental Quality:

23 a. plumbing work consisting of installing, servicing, or
24 repairing service mains, service lines, or sewer, gas,

1 or storm drainage services on private property in an
2 area that extends from a public right-of-way or public
3 easement to not less than five (5) feet from a
4 building or structure,

5 b. downspout boots, or

6 c. fire risers.

7 Work performed pursuant to paragraph 7 of this subsection shall
8 be done under the scope of the bond of the utility contractor and
9 shall not be done on repairs on previous work completed by a
10 plumbing contractor.

11 SECTION 3. This act shall become effective November 1, 2026.

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13 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
14 OVERSIGHT, dated 04/15/2026 - DO PASS, As Amended.